

ROBINSON, ET AL. VS. COUNTY OF SHASTA

Case Number: CVCV20-0195757

Tentative Ruling on Motion to Strike Costs: Plaintiffs Michael and Christina Robinson move to strike or in the alternative tax Defendant County of Shasta's Memorandum of Costs. Plaintiffs move to strike the following specific costs:

- Item 4: Deposition Costs (\$11,893.69)
- Item 11: Court Reporter Fees (\$10,735.07)
- Item 12: Models, Enlargements, and Photocopies of Exhibits (\$2,313.52)
- Item 16: Other – Attorney/Messenger Services, CourtCall, Travel and Mediation (\$8,314.40)

Merits of Motion. Pursuant to CCP § 1032, the party prevailing in most civil cases may recover costs of suit in any action or proceeding. See CCP § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606. The Court has already issued an order on February 27, 2025 that Defendant was the prevailing party pursuant to CCP § 1032(a)(4). The determination of a prevailing party is not the end of the analysis, however. Section 1032(a)(4) provides that the Court has discretion to award or deny costs to the prevailing party. The Court will exercise its discretion to award costs to Defendant. Plaintiffs filed the present action to quiet title to a roadway that encumbered their real property. Plaintiffs' actions forced Defendant to defend itself through trial, where it succeeded in obtaining a judgment that it had a right to the roadway, albeit with a smaller scope than Defendant argued. Accordingly, the Court finds Defendant is entitled to costs pursuant to CCP § 1032(a)(4).

Costs are only recoverable if they are both reasonable in amount and reasonably necessary to the conduct of the litigation. CCP § 1033.5(c)(2)(3). Plaintiffs challenge the various costs on the grounds that they were not "reasonably necessary" to the litigation. Plaintiffs' technical argument is that the costs were not reasonably necessary to Defendant's stated objective of preserving access to the roadway. The Court finds this argument to be without merit. Plaintiffs sought to quiet title to the roadway claimed by Defendant. Defendant accordingly had a right to defend itself in the litigation. This defense would necessarily incur normal litigation costs.

Verification of the memorandum of costs by the prevailing party's attorney establishes a prima facie showing that the claimed costs are proper. *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267. "If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred." *Rappenecker v. Sea-Land Service, Inc.* (1979) 93 Cal.App.3d 256, 266. Once the item is properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. *Ladas v. California State Auto Assn.* (1993) 19 Cal.app.4th 761, 774. The Court has reviewed Plaintiffs' argument related to each challenged category of costs and find that they have not properly objected to the amount or necessity of the costs. Accordingly, the memorandum of costs is prima facie evidence that the costs were reasonably necessary. Out of an abundance of action, the Court has independently reviewed each challenged category of costs and finds that they were reasonably necessary to Defendant's defense. The Court is mindful that the scope of the litigation was controlled by the Plaintiffs' complaint which sought to quiet title to the entire roadway. The Court finds that Plaintiffs have failed to sufficiently challenge the amount and necessity of the costs.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

HARTMAN VS. LINDSAY, SR

Case Number: 24CV-0205998

This matter is on calendar for review regarding status of responsive pleading and trial setting. Defendant filed a General Denial and the matter is now at issue. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than March 10, 2026. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

JEWETT, ET AL. VS. CALIFORNIA DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT, ET AL.

Case Number: 24CV-0206422

This matter was dismissed on this morning's Law & Motion calendar and all future hearings were vacated.

JOHNSON, ET AL. VS. DOMINANT INK, ET AL.

Case Number: 23CV-0203847

This matter is on calendar for review regarding status of the case and trial setting. The Court notes that the matter is at issue. The Court designates this matter as a Plan III case and intends on setting the matter for trial no later than December 9, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

K&S STAFFING SOLUTIONS, INC VS. FIDELITY AND DEPOSIT COMPANY OF MARYLAND, ET AL

Case Number: CVCV18-0189440

This matter is on calendar for review regarding status of bankruptcy. Plaintiff was to file a status statement and provide the bankruptcy judgment prior to today's hearing. No status statement was filed and the bankruptcy judgment has not been provided. **An appearance is necessary on today's calendar.**

KEMP VS. WAIT ROOFING & SEAMLESS GUTTER, INC., ET AL.

Case Number: 24CV-0206390

This matter is on calendar for review regarding status of arbitration as to Defendant LeafFilter North, LLC and status of responsive pleadings as to Defendant Wait Roofing & Seamless Gutter, Inc. The Court notes that a Proof of Service of Summons was filed as to Defendant Wait Roofing & Seamless Gutter, Inc. on December 16, 2024. No responsive pleading or Request for Entry of Default have been filed. No status statement was filed regarding the status of arbitration. **An appearance is necessary on today's calendar.**

MANGELS VS. RANDELL, ET AL.

Case Number: 23CV-0203674

This matter is on calendar for status and trial setting. The Court notes that the litigation is at issue. The Court deems this a Plan III matter and intends to set the matter for trial no later than November 12, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**